

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 21, 2026, AT 8:30 A.M.

7. S-CV-0047732 NORTHSTAR VILLAGE ASSOC. v. CLP NORTHSTAR

Case Management Conference

The case management conference is continued to **August 20, 2026, at 8:30 a.m. in Department 3**. A review of the court record reflects no proposed order for the parties' stipulated stay has been filed with the court despite the parties' indications a further stay may be requested.

8. S-CV-0051706 NERSESYAN, OVSEP v. JUERN, JEREMY

Defendant Jeremy S. Juern M.D.'s Motion for Summary Judgment

Preliminary Matters

Defendant's requests for judicial notice are granted.

Ruling on Motion

Defendant moves for summary judgment or, in the alternative, summary adjudication as to plaintiff's complaint. A motion for summary judgment may be granted if "all the papers submitted show that there is no triable issue as to any material fact and the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc. § 437c, subd. (c).) This is compared to summary adjudication that requires a showing that there is no merit to one or more of the causes of action. (*Id.* at § 437c, subd. (f)(1).) A motion for summary adjudication proceeds "in all procedural respects as a motion for summary judgment." (*Id.* at § 437c, subd. (f)(2).) In reviewing either motion, the trial court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 843.) Defendant, as the moving party, bears the initial burden of establishing that "one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc. § 473c, subd. (p)(2).) Once that burden is met, the burden shifts to the "plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense." (*Ibid.*) Pursuant to the "golden rule" of summary judgments, "if it is not set forth in the separate statement, it does not exist." (*California-American Water Co. v. Marina Coast Water Dist.* (2022) 86 Cal.App.5th 1272, 1296.)

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 21, 2026, AT 8:30 A.M.

Plaintiff alleges a lone cause of action for medical negligence against defendant. A negligence cause of action requires plaintiff to establish: (1) duty, (2) breach, (3) proximate cause, and (4) damages. (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1142.) Where, as here, the alleged negligent acts arise from deficient medical care, the standard of care and breach elements must be established through expert opinion. (*Massey v. Mercy Medical Center Redding* (2009) 180 Cal.App.4th 690, 694.)

Here, defendant meets his initial burden to establish that his treatment of plaintiff met the applicable standard of care. (UMF Nos. 1–42.) The burden therefore shifts to plaintiff to raise a triable issue of material fact. However, plaintiff does not oppose the motion and thus does not raise a triable issue of material fact.

Accordingly, defendant’s motion for summary judgment is granted.

Defendant Sutter Valley Hospitals’ Motion for Summary Judgment or, in the Alternative, Summary Adjudication

Preliminary Matters

Defendant’s requests for judicial notice are granted.

Ruling on Motion

Defendant moves for summary judgment or, in the alternative, summary adjudication as to plaintiff’s complaint. A motion for summary judgment may be granted if “all the papers submitted show that there is no triable issue as to any material fact and the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc. § 437c, subd. (c).) This is compared to summary adjudication that requires a showing that there is no merit to one or more of the causes of action. (*Id.* at § 437c, subd. (f)(1).) A motion for summary adjudication proceeds “in all procedural respects as a motion for summary judgment.” (*Id.* at § 437c, subd. (f)(2).) In reviewing either motion, the trial court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 843.) Defendant, as the moving party, bears the initial burden of establishing that “one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc. § 473c, subd. (p)(2).) Once that burden is met, the burden shifts to the “plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense.” (*Ibid.*) Pursuant to the “golden rule” of summary judgments, “if it is not set forth in the

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 21, 2026, AT 8:30 A.M.

separate statement, it does not exist.” (*California-American Water Co. v. Marina Coast Water Dist.* (2022) 86 Cal.App.5th 1272, 1296.)

Plaintiff alleges a lone cause of action for medical negligence against defendant. A negligence cause of action requires plaintiff to establish: (1) duty, (2) breach, (3) proximate cause, and (4) damages. (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1142.) Where, as here, the alleged negligent acts arise from deficient medical care, the standard of care and breach elements must be established through expert opinion. (*Massey v. Mercy Medical Center Redding* (2009) 180 Cal.App.4th 690, 694.)

Here, defendant meets its initial burden to establish that its treatment of plaintiff met the applicable standard of care. (UMF Nos. 1–84.) The burden therefore shifts to plaintiff to raise a triable issue of material fact. However, plaintiff does not oppose the motion and thus does not raise a triable issue of material fact.

Accordingly, defendant’s motion for summary judgment is granted.

9. S-CV-0055246 POLIVAROV, ANDREY V. GENERAL MOTORS

Plaintiffs’ Motion for Attorney’s Fees and Costs

Plaintiff’s motion is granted.

Civil Code section 1794, subdivision (a) allows a buyer of a vehicle to bring an action for recovery of their damages and other legal and equitable relief for any failure to comply with obligations arising under the chapter. (Civ. Code § 1794, subd. (a).) If the buyer successfully prevails in their action, he or she may recover “attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (*Id.* at subd. (d).)

Here, plaintiff is the prevailing party because he achieved his litigation objectives. Defendant does not challenge this. Accordingly, the court must
make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time